

PART III.

ENACTMENTS REPEALED AS FROM PASSING
OF ACT.4TH SCH.
—cont.
Section 74.

Session and Chapter.	Short title.	Extent of repeal.
4 & 5 Geo. 5. c. 50.	The Merchant Shipping (Convention) Act, 1914.	The whole Act.
9 & 10 Geo. 5. c. 38.	The Merchant Shipping (Wireless Telegraphy) Act, 1919.	The proviso to subsection (2) of section one; in subsection (4) of section one the words "or a wireless telegraphy inspector" and the words "or inspector" in both places where those words occur; in subsection (5) of section one the words "or by the Merchant Shipping (Convention) Act, 1914"; in subsection (2) of section three the words from "and wireless telegraphy inspector" to the end of that subsection.

CHAPTER 10.

An Act to confirm and give effect to a certain agreement made between His Majesty's Government in the United Kingdom and His Majesty's Government in the Irish Free State with respect to the registration and control of veterinary surgeons. [17th March 1932.]

WHEREAS His Majesty's Government in the United Kingdom and His Majesty's Government in the Irish Free State have entered into the agreement set forth in the Schedule to this Act, being an agreement with respect to the registration and control of veterinary surgeons :

And whereas by Article 10 of the said agreement it is provided that the said Governments respectively shall, as soon as possible, introduce into their respective Parliaments such legislation as may be necessary to give statutory effect to the said agreement, and that the said agreement shall not take effect until such legislation in both such Parliaments has been passed into law :

And whereas the said agreement has been confirmed by an Act of the Parliament of the Irish Free State known as the Veterinary Surgeons Act, 1931, and it is expedient that it should be confirmed by an Act of the Parliament of the United Kingdom :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Confirma-
tion of
agreement.

1. The agreement set forth in the Schedule to this Act is hereby confirmed and the enactments in force in the United Kingdom with respect to veterinary surgeons shall have effect subject to the provisions of the said agreement.

Modification
of Charters of
Royal College
of Veterinary
Surgeons.

2. The Royal Charters of the Royal College of Veterinary Surgeons may be modified by supplemental Royal Charters so far as is necessary to give effect to the said agreement.

Short title.

3. This Act may be cited as the Veterinary Surgeons (Irish Free State Agreement) Act, 1932.

SCHEDULE.

AGREEMENT BETWEEN HIS MAJESTY'S GOVERNMENT
IN THE UNITED KINGDOM OF GREAT BRITAIN
AND NORTHERN IRELAND AND HIS MAJESTY'S
GOVERNMENT IN THE IRISH FREE STATE
AS TO THE REGISTRATION AND CONTROL OF
VETERINARY SURGEONS.

1. In this Agreement, the expression "the Charters" means the Charters of the Royal College of Veterinary Surgeons granted

by Her late Majesty Queen Victoria on the 8th day of March, 1844, the 3rd day of August, 1876, the 5th day of August, 1879, the 25th day of August, 1883, and the 19th day of September, 1892, respectively and by His Majesty King George V on the 21st day of August, 1914, and the 12th day of February, 1923, respectively; the expression "the Veterinary Surgeons Acts" means the Veterinary Surgeons Act, 1881, the Veterinary Surgeons Amendment Act, 1900, and the Veterinary Surgeons Act (1881) Amendment Act, 1920; the expression "the general veterinary register" means the register of veterinary surgeons maintained by the Council of the Royal College of Veterinary Surgeons under the Charters and the Veterinary Surgeons Acts; the expression "the Irish Free State Veterinary Council" means such council as may hereafter be established by legislation of the Oireachtas of the Irish Free State for the purpose of registering and controlling veterinary surgeons in the Irish Free State; the expression "the Irish Free State veterinary register" means such register of veterinary surgeons as may be required by legislation of the Oireachtas of the Irish Free State to be kept by the Irish Free State Veterinary Council; the word "formerly" shall be construed as referring to times previous to the establishment of the Irish Free State.

2. Subject to the provisions of this Agreement, and notwithstanding anything contained in the Irish Free State Constitution Act, 1922, or the Irish Free State (Consequential Provisions) Act, 1922, or the Constitution of the Irish Free State (Saorstát Éireann) Act, 1922, passed by the Provisional Parliament of Ireland, or the Adaptation of Enactments Act, 1922, passed by the Oireachtas of the Irish Free State, or any order made under any of those Acts, the constitution of the Royal College of Veterinary Surgeons, under the Charters and the Veterinary Surgeons Acts, and the powers and duties formerly vested in or imposed on that College of holding examinations for the purpose of testing the fitness of persons to practise as veterinary surgeons and of granting as a result of such examinations, diplomas qualifying for registration in the general veterinary register and other diplomas in veterinary science or any branch thereof, shall be deemed not to have been affected by the establishment of the Irish Free State, and, for the purpose of the preparation and keeping of the general veterinary register, the Council of the Royal College of Veterinary Surgeons and their officers shall, subject to the provisions of this Agreement, have and may exercise in relation to persons, colleges and matters in the Irish Free State all such powers, jurisdictions, and authorities under the Charters and the Veterinary Surgeons Acts as the said Council and their officers formerly had and might exercise under the Charters and the said Acts for that purpose in relation to persons, colleges and matters in Ireland.

3.—(1) There shall be established by legislation of the Oireachtas of the Irish Free State a Council (in this Agreement referred to as the Irish Free State Veterinary Council) for the purpose of registering and controlling veterinary surgeons in the Irish Free State, and such legislation shall provide for the establishment and maintenance by such Council of a register (in this Agreement referred to as the Irish Free State veterinary register) of persons entitled to practise as veterinary surgeons in the Irish Free State.

(2) The said legislation establishing the Irish Free State Veterinary Council shall provide that the said council shall, as from the earliest convenient date, always include four members who will be eligible to be and will be members of the Council of the Royal College of Veterinary Surgeons and represent the Irish Free State on that Council in accordance with this Agreement.

4.—(1) The necessary steps shall be taken by means of a Supplemental Charter or of legislation of the Parliament of the United Kingdom of Great Britain and Northern Ireland to secure that the number of members of the Council of the Royal College of Veterinary Surgeons shall be thirty-six, of whom thirty-two shall be representatives of the members of the said College resident outside the Irish Free State and shall be elected in the manner provided by the Charters, but by the votes of those members only who are resident outside the Irish Free State, and the remaining four members (hereinafter referred to as Irish Free State representatives) of the said Council shall be representatives of the members of the said College resident in the Irish Free State, and shall be members of the said College who are for the time being registered in the Irish Free State veterinary register and are resident in the Irish Free State and (subject to provisions hereinafter contained in relation to casual vacancies) shall be elected in such manner as may be prescribed by legislation of the Oireachtas of the Irish Free State by the votes only of those members of the said College who are for the time being registered in the Irish Free State veterinary register and are resident in the Irish Free State.

(2) The Irish Free State representatives shall be persons who are members of the Irish Free State Veterinary Council and (subject to provisions hereinafter contained in relation to casual vacancies) are such members by virtue of their election thereto by the votes of members of the Royal College of Veterinary Surgeons who are for the time being registered in the Irish Free State veterinary register and are resident in the Irish Free State.

(3) The first Irish Free State representatives shall, when elected, be arranged in order of seniority according to the number of votes cast for them respectively and shall take office at the

annual meeting of the Royal College of Veterinary Surgeons next after the taking effect of this Agreement, or, if that cannot conveniently be done, at the next following annual general meeting of the said College, and (subject to death, resignation, or disqualification) the first in seniority of the said first representatives shall hold office as such representative until the fourth annual general meeting of the said College after the meeting at which he takes office, and the second, third, and fourth in seniority of the said first representatives shall respectively hold office as such representative until the third, second and first annual general meeting of the said College after the meeting at which he takes office.

(4) Every Irish Free State representative after the first such representatives other than persons elected or co-opted to fill casual vacancies shall take office as such representative at the annual general meeting of the Royal College of Veterinary Surgeons at which the term of office of his predecessor expires, and unless he sooner dies, resigns, or becomes disqualified, shall hold office as such representative until the fourth annual general meeting of the said College after the said meeting at which he takes office.

(5) An Irish Free State representative who ceases otherwise than by expiration of his term of office to be a member of the Irish Free State Veterinary Council or ceases to be a member of the Royal College of Veterinary Surgeons or ceases to be resident in the Irish Free State shall be disqualified for being and shall forthwith cease to be an Irish Free State representative.

(6) Casual vacancies amongst the Irish Free State representatives shall be filled in such manner as shall be prescribed by legislation of the Oireachtas of the Irish Free State, but notwithstanding anything in this Agreement, such legislation may authorise the filling of such vacancies temporarily by co-option by the Irish Free State Veterinary Council pending the filling thereof by election in accordance with this Agreement.

(7) Every Irish Free State representative shall, if otherwise qualified, be eligible for election at or before the expiration of his term of office to become and be an Irish Free State representative at such expiration.

(8) The legislation of the Oireachtas of the Irish Free State regulating the terms of office of members of the Irish Free State Veterinary Council shall provide that the terms of office of Irish Free State representatives as members of the said Council shall coincide with their terms of office as such representatives, save that for reasons of practical convenience an interval not exceeding seven days may occur between the respective dates on which such terms of office respectively commence and also between the respective dates on which such terms of office respectively

expire, and it is hereby declared that for the purposes of such legislation and for the purposes of this Agreement any such interval shall be ignored.

5.—(1) Every person who is registered in the general veterinary register at the time when the Irish Free State register is first established and either is then resident in the Irish Free State or, not being so resident, applies in such manner and within such time as may be prescribed by legislation of the Oireachtas of the Irish Free State for registration in the Irish Free State veterinary register, shall be entitled to be registered in that register without payment of any fee other than such annual fee as may be or become payable under the said legislation.

(2) Subject to the subsequent provisions of this clause, every person (other than persons who are registered in the Irish Free State veterinary register under the foregoing sub-clause of this clause) who is for the time being registered in the general veterinary register shall be entitled, on payment of such fee as may be prescribed by or under legislation of the Oireachtas of the Irish Free State, to be registered in the Irish Free State veterinary register.

(3) No person whose name has been erased from the Irish Free State veterinary register on account of his having been convicted of treason or a felony, misdemeanour, crime or offence, or of his having been duly judged to be guilty of conduct disgraceful to him in a professional respect, shall be entitled subsequently to be registered in the said register solely by reason of his being registered in the general veterinary register.

(4) A person not previously registered in the Irish Free State veterinary register shall not be entitled to be registered therein if his name has been erased from the general veterinary register on account of his having been convicted of a felony, misdemeanour, crime or offence, or his having been duly judged to have been guilty of conduct disgraceful to him in a professional respect.

6.—(1) The Irish Free State Veterinary Council shall in every year pay to the Council of the Royal College of Veterinary Surgeons the sum of one guinea in respect of every person (subject to the exception hereinafter made) who during that year or any part thereof is registered in the Irish Free State veterinary register and is also registered in the general veterinary register and pays to the Irish Free State Veterinary Council in respect of his registration in the Irish Free State veterinary register the annual fee payable for such registration.

(2) No annual fee shall be payable to the Council of the Royal College of Veterinary Surgeons by a person in respect of

whom and for a year for which the sum of one guinea is paid to the said Council by the Irish Free State Veterinary Council in accordance with this clause.

(3) The sum of one guinea shall not be payable under this clause by the Irish Free State Veterinary Council to the Council of the Royal College of Veterinary Surgeons for the year in which the Irish Free State veterinary register is established in respect of any person who is registered in that register at the establishment thereof and either has paid an annual fee to the Council of the said College for that year or has paid in that year a registration fee to the Council of the said College.

(4) In this clause the word "year" means a period of twelve months commencing on any 1st day of April and ending on the next following 31st day of March.

7.—(1) Whenever a person registered in both the general veterinary register and the Irish Free State veterinary register is alleged to have been guilty of conduct disgraceful to him in a professional respect, then—

- (a) if either such person practises as a veterinary surgeon exclusively outside the Irish Free State, or such person practises as a veterinary surgeon both outside and within the Irish Free State, and the disgraceful conduct is alleged to have been committed, or (in the case of continuing conduct) begun outside the Irish Free State, the powers of investigating such allegation, and, if such allegation is proved, of removing the name of such person from the general veterinary register, shall be exercisable by the Council of the Royal College of Veterinary Surgeons under the Charters and the Veterinary Surgeons Acts as heretofore, and the Council of the Royal College of Veterinary Surgeons shall report to the Irish Free State Veterinary Council every case in which it is determined to remove from the general veterinary register the name of any person registered in the Irish Free State veterinary register, and such report shall be conclusive as to the fact, but so that the Irish Free State Veterinary Council shall form their own judgment on the case independently of any opinion of the Council of the Royal College of Veterinary Surgeons and act accordingly; and
- (b) if either such person practises as a veterinary surgeon exclusively within the Irish Free State or such person practises as a veterinary surgeon both within and outside the Irish Free State and the disgraceful conduct is alleged to have been committed, or (in the case of continuing conduct) begun within the Irish Free State,

such allegation shall, subject to the subsequent provisions of this clause, be investigated by a committee of the Irish Free State Veterinary Council under powers in that behalf to be conferred on that council by legislation of the Oireachtas of the Irish Free State.

(2) Any legislation of the Oireachtas of the Irish Free State conferring on the Irish Free State Veterinary Council powers of investigating allegations of conduct disgraceful in a professional respect made against persons who are registered in both the general veterinary register and the Irish Free State veterinary register shall limit such powers to cases coming within paragraph (b) of the foregoing sub-clause and shall provide that such investigation shall be made by a committee consisting of three members of the Irish Free State Veterinary Council (of whom at least one shall be a person who is also a member of the Council of the Royal College of Veterinary Surgeons), appointed by the Irish Free State Veterinary Council and two members of the Council of the Royal College of Veterinary Surgeons appointed by that Council.

(3) A Committee constituted in the manner specified in the foregoing sub-clause and appointed under legislation of the Oireachtas of the Irish Free State to investigate an allegation of disgraceful conduct in a professional respect coming within paragraph (b) of sub-clause (1) of this clause shall, for the purposes of the Charters and the Veterinary Surgeons Acts, be deemed to be a committee of the Council of the Royal College of Veterinary Surgeons appointed by that Council under the said Acts. The power of removing from the Irish Free State veterinary register the name of any person whose conduct becomes the subject of an investigation by such committee as aforesaid shall be exercisable by the Irish Free State Council under the provisions in that behalf of the legislation to be passed by the Oireachtas. The Irish Free State Council shall report to the Council of the Royal College of Veterinary Surgeons every such case in which it is determined to remove from the Irish Free State Register the name of any such person and such report shall be conclusive as to the facts, but so that the Council of the Royal College of Veterinary Surgeons shall form their own judgment on the case independently of any opinion of the Irish Free State Council and act accordingly.

(4) Where, as a result of an investigation held under paragraph (a) of sub-clause (1) of this clause, the name of any person is removed from the general veterinary register and such person applies to have his name restored to that register, the Council of the Royal College of Veterinary Surgeons shall report such application to the Irish Free State Council and its determination thereon.

(5) Where, as a result of an investigation held under paragraph (b) of sub-clause (1) of this clause, the name of any person is removed from the Irish Free State veterinary register and such person applies to have his name restored to that register the Irish Free State Veterinary Council shall report such application to the Council of the Royal College of Veterinary Surgeons and its determination thereon.

(6) The legislation to be passed by the Oireachtas of the Irish Free State may provide that an appeal from a decision of the Irish Free State Veterinary Council removing from the Irish Free State veterinary register the name of any person registered therein or refusing to restore thereto the name of any person removed therefrom shall be to the High Court of the Irish Free State and to no other court or tribunal.

8. At every examination held in the Irish Free State by the Council of the Royal College of Veterinary Surgeons, the said Council shall, on the nomination of the authorities of any college, school or institution in the Irish Free State affiliated to the said Royal College, appoint the principal teacher of a subject in that school or his deputy to act as third or internal examiner in that subject of students educated at that college, school or institution, but such third or internal examiner shall not set the written questions at such examination.

9. At every examination held in the Irish Free State by the Council of the Royal College of Veterinary Surgeons, the said Council and the Irish Free State Veterinary Council shall each be entitled to be represented by delegates appointed by the said councils respectively for the purpose of observing the conduct of such examination and reporting thereon to the said councils respectively.

10. His Majesty's Government in the United Kingdom of Great Britain and Northern Ireland and His Majesty's Government in the Irish Free State shall, as soon as possible, introduce into their respective Parliaments such legislation as may be necessary to give statutory effect to this Agreement, and this Agreement shall not take effect until such legislation in both such Parliaments shall have been passed into law.

Signed on behalf of His
Majesty's Government in
the United Kingdom of
Great Britain and Nor-
thern Ireland,

J. H. THOMAS.

Signed on behalf of His
Majesty's Government in
the Irish Free State,

P. MCGILLIGAN.
